

As to the Second, Fourth, Seventh and Eighth Causes of action, plaintiff has failed to properly allege the elements of fraud. Fraud allegations must be pleaded with more detail than other causes of action *Heritage Pacific Finance, LLC v. Monroy* (215 Cal. App. 4th 972, 989.) The policy of liberal construction of pleadings does not apply to fraud causes of action. The facts constituting the fraud, including every element of the cause of action, must be alleged “factually and specifically,” i.e., the Plaintiff must plead facts showing the defendant’s misrepresentation (or omission that the defendant had a duty to disclose), defendant’s knowledge of falsity (“scienter”), the defendant’s intent to defraud (i.e., to induce the plaintiff’s reliance on the misrepresentation), the plaintiff’s justifiable reliance, and the resulting damage/ *Kalnoki v. First Am. Trustee Servicing Solutions, LLC* (2017) 8 Cal. App. 5th 23, 35.

As to the Third Cause of Action for Quiet Title, Plaintiff has failed to allege the proper elements of a Quiet Title action and supporting evidence. CCP 761.020

As to the Fifth Cause of Action for Breach of Contract, Plaintiff has failed to properly allege the elements of Breach of Contract and supporting evidence. A breach of contract is not actionable without damages, except for a potential award of nominal damages. *Levy v. Only Cremations for Pets, Inc.* (2) 57 Cal. App. 5th 203, 214. A written contract may be pleaded either by its terms—set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated by reference—or by its legal effect, i.e., by alleging the substance of its relevant terms *Construction Protective Services, Inc. v TIG Specialty Insurance Co.* (2002) 29 Cal 4th 189, 198-199.; *Heritage Pacific Finance, LLC v. Monroy* (2013) 215 Cal. App. 4th 972, 993 (alleging substance of contract’s relevant terms is more difficult because it requires careful analysis of instrument, comprehensiveness in statement, and avoidance of legal conclusions). An oral contract may be pleaded generally as to its effect, because alleging the exact words is rarely possible *Scolinos v. Kolts* (1995) 37 Cal. App. 4th 635, 640-641. Plaintiff must allege the consideration for the contract, however, because the statutory presumption of consideration does not apply to an oral contract *Stevenson v. San Francisco Housing Authority* (1994) 24 Cal. App. 4th 269, 284.

As to the Sixth Cause of Action for Breach of the Covenant of Good Faith and Fair Dealing, this appears to rely on the same acts and seek the same damages or other relief already claimed in the cause of action for breach of contract, making this superfluous 57 Cal. App. 5th at 215.

Plaintiff shall have 30 days to amend the SAC.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2504830	VINCENT VS UBA	MOTION TO STRIKE 2ND AMENDED COMPLAINT

Tentative Ruling: Moot in light of the Court’s ruling on #3 above.